

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

JOINT STATEMENT ON TARGET DATE

Pursuant to Order No. 3, Complainants Samsung Electronics Co., Ltd. and Samsung Electronics America, Inc. (“Complainants” or “Samsung”), and Respondents Ouraring Inc. and Ōura Health Oy (“Respondents”), by and through their respective counsel, respectfully submit this joint statement regarding the target date for this Investigation.

The Parties have conferred on a proposed target date. As set forth below, Complainant Samsung proposes a 16-month target date and Respondents propose an 18-month target date. The positions of the Parties are outlined below.

I. Complainant’s Position

Samsung proposes a 16-month target date in view of the narrow scope of this investigation and the familiarity that the ALJ, Commission, Parties, and their counsel have on the underlying issues. The current investigation involves four patents, 39 asserted claims, and two related Respondents. Two of the four patents asserted in this investigation are part of the same family. Moreover, no third-party discovery is expected to be necessary for establishing infringement; while Oura has recently served subpoenas relating to *invalidity*, that is a practice common in many ITC investigations and which has not been a justification for setting an 18-month target date at the

outset. Furthermore, domestic industry is expected to be straightforward; Samsung’s domestic industry is based on its own investments in the Domestic Industry Products rather than on any activities by licensees or third parties. Moreover, public interest was not delegated to the ALJ for this investigation.

Given the Commission’s goal of concluding Section 337 investigations “at the earliest practicable time after the date of publication of notice of such investigation,” and the minimal complexity of this particular investigation, Samsung believes a 16-month target date proposal is appropriate. 19 U.S.C. 1337(b)(1). A 16-month target date achieves the Commission’s goals and is conservative compared to the 16-month target date of another investigation between Respondent Ouraring Inc. and Samsung where (unlike this investigation) multiple other respondents are involved. *See Certain Smart Wearable Devices, Systems, and Components Thereof*, Inv. No. 337-TA-1468, Order No. 5 (Jan. 6, 2026) (setting 16-month target date). Because this investigation only involves one set of respondents, there is only a single set of accused products to assess, compared to the three sets identified in the 1468 Investigation.

Respondents also refer to the co-pending litigation in the Eastern District of Texas—*Omni MedSci, Inc. v. Samsung Electronics Co. Ltd, et al.*, C.A. 2:24-cv-1070—as a justification for extending the target date in this investigation. However, there is no guarantee that that case will proceed to trial on the suggested date. Moreover, the Samsung defendants in that case are not represented by the same counsel as Complainants in this investigation.

In view of the foregoing, Samsung respectfully requests a 16-month target date.

II. Respondents’ Position

Respondents propose an 18-month target date. As Complainants acknowledge, another investigation between Respondent Ouraring Inc. and Samsung, Inv. No. 337-TA-1468 (the “1468

Investigation”), was given a 16-month target date. In that case, Samsung proposed a 17-month target date, characterizing the four patent case as “large and complex.” 1468 Investigation, Joint Statement on Target Date, EDIS Doc. ID. 867950, at 5. In support of its position, Samsung cited “distinct patents presenting different scopes, invalidity arguments, and claim construction issues that were not previously litigated,” and noted that Samsung being based in Korea would lead to a “potentially significant amount of the discovery in this Investigation that may require translation.” *Id.* at 6. Although Oura disagreed with Samsung’s position in the 1468 Investigation based on the particular circumstances of that Investigation, they are persuasive here where the matter is considerably less streamlined.

Whereas the 1468 Investigation involves four patents with 34 asserted claims from a single patent family, this Investigation involves four patents with 39 asserted claims from *three separate* patent families. The fact that these patents are from different patent families raises distinct issues for infringement, validity, and domestic industry technical prong that will need to be addressed for each family. Furthermore, the 1468 Investigation had the benefit of both a prior investigation and prior Patent and Trial Appeal Board (“PTAB”) proceedings, which included proceedings initiated by Samsung,¹ that addressed and resolved issues of validity and secondary considerations for one of the Oura asserted patents. Here, there are no such prior proceedings and validity and secondary consideration issues for each of the asserted patents will need to be addressed in the first instance.

Samsung is additionally incorrect that this case will not require third party discovery. Indeed, Oura has already requested the issuance of two third-party subpoenas related to potential product prior art along with a request to review third-party source code, with additional subpoenas

¹ Whereas Samsung and its counsel were already familiar with Oura’s asserted patents in the 1468 Investigation, this Investigation, and related district court litigations filed shortly before this Investigation was instituted, marks Oura’s first formal exposure to the Samsung asserted patents.

expected to follow. Thus, the fact that this Investigation is Oura's first opportunity to challenge validity of the patents materially impacts the time necessary to collect relevant discovery in this Investigation.

The 1468 Investigation also benefits from the prior investigation's resolution of Oura's domestic industry. Here, Samsung's alleged domestic industry has not been tested. While Samsung asserts domestic industry is expected to be straightforward, such position is undermined by the assertions set forth in Samsung's First Amended Complaint. Specifically, Samsung is relying on a varying mix of three product groups (Galaxy smartwatches, Galaxy Ring, and Galaxy S25 smartphones) across the four patents to establish a domestic industry. Thus, the parties and the Commission will not only have to address technical prong issues for multiple products, but also different product groups that are asserted to practice the patents in different ways. Samsung's reliance on a mix of product groups also complicates the economic prong inquiry, which will vary by patent, particularly if Samsung cannot directly correlate investment data to the domestic industry products.

Oura further submits that, given the overlap between the parties, counsel, and general subject matter of this Investigation with the 1468 Investigation, it is appropriate to allot additional time to this matter to ensure there is adequate separation between the two proceedings. Without such time built in, the parties are likely to run into issues with, for example, witness availability. And, in addition to the 1468 Investigation having an evidentiary hearing scheduled for July 2026, both Oura and Samsung are also co-defendants in another trial scheduled to start August 17, 2026 in Texas. *Omni MedSci, Inc. v. Samsung Electronics Co. Ltd, et al.*, C.A. 2:24-cv-1070, Dkt. 33 Docket Control Order (EDTX March 26, 2025). Oura is represented by the same counsel in all

three matters, and at least some of the same witnesses for Oura are set to testify in each of the three proceedings.

In view of the foregoing, Oura respectfully requests an 18-month target date.

Dated: January 22, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

Investigation No. 337-TA-1478

The undersigned certifies that on January 22, 2026, true and correct copies of the foregoing document were served upon the following parties as indicated below:

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